

HOUSE No. 3996

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle L. Badger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to Massachusetts Solar Access Law.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>1/10/2025</i>

HOUSE No. 3996

By Representative Badger of Plymouth, a petition (accompanied by bill, House, No. 3996) of Michelle L. Badger relative to zoning restrictions for solar systems. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to Massachusetts Solar Access Law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The ninth paragraph of section 3 of Chapter 40A of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by adding the following 2 sentences:-
3 Any damage to the public health, safety and welfare shall be proven in a court of law by local
4 authorities that seek to restrict the use of solar systems attached to permanent buildings. No
5 home owners' association or other owner's organization shall unreasonably refuse or
6 unreasonably delay the installation of solar energy systems or the building of structures that
7 facilitate the collection of solar energy on roofs pursuant to section 25 of chapter 183A.

8 SECTION 2. Chapter 183A of the General Laws, as amended by section 47 of chapter
9 150 of the acts of 2024, is hereby amended by adding the following section:-

10 Section 25. No home owners' association or organization of owners shall unreasonably
11 refuse or unreasonably delay the installation of solar energy systems or the building of structures
12 that facilitate the collection of solar energy on roofs. A home owners' association or organization

- 13 of owners may impose reasonable restrictions on installation of solar energy systems or the
- 14 building of structures that facilitate the collection of solar energy on roofs.